

LAND LEASE AGREEMENT FOR SOLAR PROJECT COVER SHEET

Owner:	Sun-REA, LLC, a Delaware limited liability company
Tenant:	Pequawket Trail Baldwin Solar, LLC, a Delaware limited liability company
Property Address:	1093 Pequawket Trail, Baldwin, ME 04024
Effective Date:	July 22, 2020
End of Feasibility Period:	July 22, 2021 (One year from Effective Date)
Commencement Date:	To be the date of the notice to proceed described in <u>Section 2</u> of the Lease.
Base Rent:	\$1.00 annually
Additional Rent:	If Tenant elects to exercise an extension of the Initial Term (as defined below) for five (5), ten (10), or fifteen (15) more years, Tenant shall pay Owner Rent in a mutually agreed amount, in accordance with <u>Section 3(c)</u> of the Lease.
Deposit:	\$1.00 and other valuable consideration
Initial Term:	Commencement Date until 240 months (20 years) from Commercial Operation Date
Date of End of Initial Term:	Twenty years from Commercial Operation Date
Date to Notify of Intent to Extend:	Ninety (90) days prior to expiration of Initial Term
Renewal Terms:	Three additional five (5) year terms, at Tenant's election
Owner Address for Notice:	718 W. Business Highway 60; PO Box 639 Dexter, MO 63841
Tenant Address for Notice:	718 W. Business Highway 60; PO Box 639 Dexter, MO 63841
Exhibit A:	Legal description of Owner's Property
Exhibit B:	Legal Description of Premises (including Easements)
Exhibit C:	Site Map of Premises, including Solar Facility
Exhibit D:	Form of Memorandum/Notice of Lease
Exhibit E:	Form of Estoppel with Owner's Consent to Finance
Exhibit F:	Form of Easement
Exhibit G:	Form of Estoppel

LAND LEASE AGREEMENT FOR SOLAR PROJECT

This Land Lease Agreement For Solar Project (the “Agreement” or “Lease”) is made and entered into as of the Effective Date (as such term is hereinafter defined), by and between **Sun-REA, LLC**, a Delaware limited liability company having a business address of 718 W. Business Highway 60, Dexter, MO 63841 (“Owner”), and **Pequawket Trail Baldwin Solar, LLC, a Delaware limited liability company** having a business address of 718 W. Business Highway 60, Dexter, MO 63841 (“Tenant”). The Tenant and the Owner are sometimes referred to individually as a “Party” and collectively as the “Parties.”

Background

WHEREAS Owner owns a parcel of real property located in Baldwin, Cumberland County, Maine, being identified on the Town of Baldwin’s Assessor’s Map 11 and is located in the Rural District and listed as a Portion of 1074 Pequawket Trail, Baldwin , Maine and further described in Exhibit A attached hereto and made part hereof (the “Property”);

WHEREAS, Tenant desires to lease from Owner a portion of the parcel of the Property known as the Premises, as such term is further defined in Section 1 below, for the purposes of constructing and operating a solar array project, as further described in Section 1 below (the “Project”) described herein, and Owner has agreed to lease such Premises to Tenant for such purpose; and

WHEREAS, the Parties desire to set forth herein the terms and provisions pursuant to which Owner shall lease the Premises described herein to Tenant, and Tenant shall lease such Premises from Owner and utilize the same for the purposes set forth herein.

NOW, THEREFORE, IN WITNESS WHEREOF:

In consideration of the premises and the mutual covenants and agreements contained herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, and intending to be legally bound, the Parties hereto agree as follows:

Section 1. **Lease of Premises.** Owner hereby demises and leases to Tenant, and Tenant hereby leases from Owner, for the purposes described herein, including without limitation to develop, design, engineer, construct, monitor, install, own, operate and maintain the Project, on a portion of the Property as further described in Exhibit B attached hereto and by this reference made a part hereof (together with the Easements, as such term is hereinafter defined and further described in Exhibit B and Exhibit F, and as the same may be amended in accordance with the terms hereof, the “Premises”), which Premises are depicted on the Site Plan that is attached hereto as Exhibit C, and by this reference made a part hereof, TO HAVE AND TO HOLD the Premises together with all rights, privileges, easements and appurtenances thereunto belonging and attaching, unto Tenant. This Lease is made upon the covenants and agreements hereinafter set forth with which the Parties hereto respectively agree to observe and comply during the Term (as such term is hereinafter defined). The Tenant and Owner acknowledge that the location and size of the Premises is subject to change pending the results of Tenant’s feasibility studies during

the Feasibility Period, as the same is hereinafter defined. In the event that the Premises must be adjusted or decreased based upon the results of Tenant's feasibility studies or due to the requirements of local permitting bylaw and rulings, wetlands, geotechnical investigation, environmental work, Phase I ESA report, utility approvals and limitations, design configuration, the capacity of the electrical grid, and all other state and local permits and approvals, in Tenant's sole discretion, then the Owner shall cooperate with Tenant to amend this Lease prior to the expiration of the Feasibility Period to provide Tenant with such area as is necessary, in Tenant's reasonable discretion and as a result of any third party actions, for the installation and operation of a solar photovoltaic generation facility, even if such cooperation increases or decreases the area of Owner's retained possessory interest. The Parties agree to amend this Lease and the Memorandum thereof as necessary to incorporate a revised description and depiction of the Premises prior to the Commencement Date, time being of the essence.

Section 2. **Term.** The initial term of this Agreement (the "**Initial Term**") shall commence on the date on which Tenant gives any construction contractor a notice to proceed under the appropriate contract to construct the Project (the "**Commencement Date**") and shall expire on the twentieth (20th) anniversary of the date on which the Project begins to sell energy into the grid in commercial quantities under any power purchase arrangement (the "**Commercial Operation Date**"), unless otherwise terminated at an earlier date in accordance with the terms of this Agreement. The Commencement Date shall be a date prior to the last day of the Feasibility Period, and Tenant shall provide to Owner thirty (30) days' written notice of such Commencement Date. Provided Tenant is not in default of the terms of this Lease, Tenant shall have the right to extend this Lease for three (3) options (each an "**Option**") for terms of five (5) years each (each an "**Renewal Term**"). Tenant shall exercise each Option by giving written notice of its intent to extend the term of this Lease to Owner not more than twelve (12) months nor less than three (3) months prior to the expiration of the then current term of the Lease. The term of this Agreement shall be the Initial Term plus any Renewal Terms (together, the "**Term**").

Section 3. **Rent.**

(a) Starting on the Commencement Date until the Commercial Operation Date (the "**Construction Period**"), the Tenant shall pay to Owner One Dollar (\$1.00) as Construction Period rent. In addition, the Deposit received by Owner pursuant to Section 4 hereof shall be retained by Owner as consideration for the Feasibility Period and Construction Period rent.

(b) Starting on the Commercial Operation Date, Tenant shall pay to Owner annual rent ("**Rent**") in the amount of Twenty Thousand per year ("**Rent Rate**"), payable in quarterly installments

(c) The Rent for each year of any Renewal Term shall be mutually agreeable by the parties, which Rent shall otherwise be made payable in accordance with Section 3(a).

Section 4. **Feasibility and Permitting Period.**

(a) Owner acknowledges receipt of a non-refundable deposit of \$1.00 (the "**Deposit**") prior to the Effective Date hereof. In consideration for the Tenant's payment of the Deposit,

Tenant and its employees, advisors, representatives, agents, contractors, and subcontractors, are hereby granted the right for a period commencing on the Effective Date and terminating one year from the Effective Date (the “Initial Feasibility Period”, and collectively with any extensions thereof pursuant to Section 4(c) hereof, the “Feasibility Period”), at Tenant’s sole cost and expense, to enter upon the Property and conduct such analyses, tests, reviews, inspections and studies (collectively, the “Tests”) as Tenant deems necessary to determine the Property’s suitability for Tenant’s intended use thereof; to obtain any and all permits, licenses, agreements and entitlements necessary for Tenant’s intended use of the Property; and to develop, design, engineer, and prepare for construction of the Solar Facility, as the same is hereinafter defined. Such Tests may include, but are not limited to, surveys, soil, sediment, surface water and groundwater tests, environmental evaluations, solar assessments, and such other Tests as Tenant deems necessary or desirable. In addition, Tenant may obtain an abstract or preliminary title report regarding the Property from a title insurance company of its choice (the “Title Report”). The Parties hereto covenant and agree that notwithstanding anything to the contrary set forth herein, Tenant shall not be liable to Owner or any third Party on account of or otherwise with regard to any pre-existing defect, condition or encumbrance on or with respect to the Property, title to the Property and/or any improvements located on the Property, regardless of whether or such defect, condition or encumbrance is disclosed by the Tests or the Title Report, and Owner shall maintain commercial general liability and hazard insurance in a commercially reasonable amount in connection with any such potential damages to Tenant. Owner shall use reasonable efforts to cooperate with Tenant for Tenant to obtain title insurance for the Property establishing good and marketable leasehold title to the Premises subject only to such title exceptions as are acceptable to Tenant and its lenders. Tenant shall provide Owner with copies of all reports produced in connection with the Property upon request.

(b) During the Feasibility Period and throughout the Term, Owner shall cooperate with Tenant and shall execute all documents required to assist Tenant in obtaining all permits and to permit Tenant’s intended use of the Premises and the Easements in compliance with zoning, land use, utility service and building laws, rules, ordinances, permits, approvals, variances and regulations, and any other applicable laws or regulations. Owner shall not take any action that would adversely affect Tenant’s ability to obtain or maintain any governmental approval. Owner hereby appoints Tenant as its agent and attorney-in-fact for the limited purpose of making such filings and taking such actions as are necessary to obtain any desired zoning and land use approvals and/or building permits regarding the Project and the Premises and the Easements.

(c) Owner shall take any and all actions requested by Tenant in a timely manner to cure any title defects, liens, claims or encumbrances which may interfere with Tenant’s use and operation of the Premises and/or the Easements revealed in the Title Report, or any exceptions listed in any draft title commitment or pro forma developed from the Title Report (“Title Defects”). Upon discovery of any such Title Defects, Tenant shall have the right, but not the obligation, to either (i) discharge or require Owner to discharge such Title Defects prior to the last day of the Feasibility Period, or (ii) terminate this Lease by providing written notice thereof to Owner. Owner understands that time is of the essence during the Feasibility Period and agrees to use commercially reasonable efforts to assist Tenant with its due diligence of the Premises. If Owner agrees to discharge any items requested by Tenant pursuant to (i), Owner shall timely

comply with any deadlines Tenant sets forth for such discharges. Upon and after such termination pursuant to (ii), neither Owner nor Tenant shall have any further obligation or liability under this Agreement except as otherwise expressly provided in Section 4(h) hereof. Notwithstanding the foregoing, liens associated with any mortgages granted by Owner on Owner's fee interest shall not be considered a Title Defect and may remain in place so long as Owner obtains from each such mortgagee holding a mortgage upon Owner's fee interest a Subordination, Non-Disturbance and Attornment Agreement reasonably acceptable to Tenant and Tenant's lenders in a timely manner following any Tenant request. Tenant shall not suffer or permit any lien, claim or charge of any kind whatsoever to attach to the Premises or any part thereof.

(d) Tenant shall pay for all costs incurred by it in connection with the Tests and its permitting and approval activities with regard to the Premises and the Easements and its general due diligence review of the Property.

(e) [RESERVED].

(f) [RESERVED /ANY PROPERTY SPECIFIC PROVISIONS].

(g) If, in the sole and absolute discretion of Tenant, Tenant determines during the Feasibility Period that the Premises or the Property is not suitable for Tenant's intended use thereof, or Tenant determines that the construction and operation of the Project on the Property would not be economically feasible or in Tenant's best interest, or if Tenant is unsuccessful in obtaining the permits necessary for Tenant's intended use of the Property, or any title defects or exceptions to any draft title commitment cannot be cured or removed, then Tenant shall have the right at any time prior to the Lease Commencement Date to terminate this Agreement by providing written notice thereof to Owner. Upon and after such termination, neither Owner nor Tenant shall have any further obligation or liability under this Agreement except as otherwise expressly provided herein. If Tenant terminates this agreement, Owner shall be entitled to retain the Deposit and the Feasibility Extension Payment, if any.

(h) If the state of title to the Property as set forth in the Title Report indicates any liens, claims or encumbrances which may interfere with Tenant's use and operation of the Premises and/or the Easements for its intended use a Solar Facility as described herein, Tenant shall have the right but not the obligation to either (i) require Owner to discharge such liens, claims and/or encumbrances and deduct the cost thereof from the Rent to become due hereunder, or (ii) terminate this Lease by providing written notice thereof to Owner. Upon and after such termination, neither Owner nor Tenant shall have any further obligation or liability under this Agreement except as otherwise expressly provided herein. Notwithstanding the foregoing, liens associated with any mortgages granted by Owner on Owner's fee interest may remain in place so long as Owner obtains from each such mortgagee holding a mortgage upon Owner's fee interest a Non-Disturbance and Attornment Agreement reasonably acceptable to Tenant and Tenant's lenders.

(i) Tenant agrees to promptly, to the extent reasonably practicable under the circumstances, repair any damage to the Property that is caused by the Tests and restore the Property to the condition it was in immediately prior to such Tests.

(j) The provisions of Section 4(d) and (i) shall survive the termination of this Lease for a period of one (1) year, notwithstanding anything in this Lease to the contrary.

(k) Owner shall cooperate with Tenant's efforts to qualify the Project for any incentive program(s) available under applicable law, and shall provide commercially reasonable assistance necessary for Tenant to satisfy all required reporting obligations for the Project throughout the Term.

Section 5. Use.

(a) From and after the Commencement Date, Tenant is hereby granted the sole right to use the Premises for the purpose of constructing, installing, removing, replacing, reconstructing, maintaining and operating a solar array project, including solar panels, equipment, equipment shelters, tracking systems, canopy bays, and buildings, electronics equipment, battery storage technology and/or system, generators, transformers, bank securing equipment, installation machines, tethers and other equipment, improvements and such other personal property, fencing and landscaping around the perimeter of the Premises or the portion thereof within which such Project shall be located (the "Solar Compound"), and a gate to the Solar Compound, all as described and depicted in Exhibit C attached hereto, as the same may be amended in accordance with the terms hereof (collectively, the "Solar Facility"). Owner hereby consents to the making of all such improvements from and after the Commencement Date. Any and all such materials installed by Tenant in, on or under the Property shall be deemed the personal property of Tenant, and shall not become fixtures or deemed a permanent part of the Property. Tenant shall have the right to alter, replace, expand, enhance and upgrade the Solar Facility within the Premises at any time during the term of this Lease. Tenant shall cause the construction of and all modifications to the Solar Facility to occur in material compliance with all applicable laws, rules, regulations, ordinances, permits, approvals and variances.

(b) Tenant shall use the Premises and such other areas of the Property as identified and depicted on the attached Exhibit B, as such may be updated in accordance with Section 1 hereof, as the same may be amended in accordance with the terms hereof, for solar energy conversion, the collection and transmission of electrical energy to and from the Project, and for related and incidental purposes and activities, including but not limited to: (a) locating, constructing, installing, operating, maintaining, improving, repairing, relocating, and removing the Project on and from the Premises; (b) parking in designated areas of the Property; (c) accessing the Premises and the Project (including but not limited to access for lifting, rigging, and material-handling equipment); (d) installing gates, fences, and such other security measures as may be necessary or desirable in Tenant's sole determination, to secure the Project; and (e) installing, maintaining, using, and repairing on the Premises, inverters, electrical wires and cables required for the transmission of electrical energy to and from the Project.

(c) This Agreement includes the right of ingress and egress to and from the Project over and across the Property for the purposes of installing, operating, maintaining, improving, repairing, relocating, and removing the Project on the Premises and to run wires and conduit from the Project to the electrical panel and other areas within the Property, install any necessary fixtures to run such wires and conduit, and to obtain access to other utility services made available by the Owner. This right of access granted by Owner, includes but is not limited to access for lifting, rigging and material-handling equipment, ingress to and egress from the Project on, over, and across the Property subject to the terms of this Agreement. The Tenant agrees to maintain the Property, subject to this Lease and specifically utilized for purposes of ingress and egress, during the Term of this Lease in its original condition, normal wear and tear excepted, and agrees to restore any damage done to said Property by the Tenant during the Term of this Lease Agreement. Access to the Premises by the Tenant's employees, contractors or agents shall conform to the Owner's reasonable rules and guidelines regarding safety and site access for maintenance and similar workers, if any, which rules and guidelines shall not unreasonably impair Tenant's use of the Property as a Solar Facility.

(d) Tenant shall keep and maintain the Solar Facility now or hereafter located on the Premises in good condition and repair, and shall maintain and operate the Solar Facility in material compliance with all applicable federal, state and local laws, rules, regulations, ordinances, permits, approvals and variances. Tenant shall not be responsible for normal wear and tear of the Premises and casualty not caused by Tenant or any employee, agent, contractor or representative thereof.

(e) Tenant may fence the Premises or the Solar Compound, provided that such fencing shall be installed so as to maintain reasonable access around the Premises or Solar Compound by Tenant and Owner. Tenant shall have the right to clear and thereafter to keep clear the Premises and the Easements of all trees, bushes, rocks, crops and other vegetation using mechanical means subject to any restrictions and requirements of any buffer zones and setbacks required by local or state laws and permits. No pesticides or herbicides shall be used at any time without approval by Owner. During the construction of the Solar Facility only, Tenant shall have the right to use Owner's retained property immediately adjacent to the Premises in connection with the construction of the Solar Facility at the Premises. If the construction or maintenance of the Solar Facility results in damage to any adjacent lands of Owner (other than as permitted or otherwise contemplated herein), Tenant shall repair such damage to the condition of such lands prior to such damage to the extent feasible.

(f) Tenant will pay for all utilities services used by Tenant at the Premises. If the Premises do not have utilities services thereat, Tenant shall have the right to cause utilities services to be installed at the Premises, at Tenant's sole expense, and to improve, at Tenant's sole expense, the present utilities services to the Premises (including, but not limited to, the installation of emergency power generators, power lines and utility poles). Tenant shall provide Owner a plan depicting such utilities services for Owner's review and timely approval, which shall not be unreasonably withheld or delayed. Owner agrees to use reasonable efforts to assist Tenant in acquiring the necessary utilities services to the Premises.

(g) As partial consideration for the Rent paid pursuant to this Lease, Owner hereby grants to Tenant and its successors and assigns, during the Term, easements in, under and across the Property: (i) for ingress, egress and access to the Premises, by foot and motor vehicles (including trucks), (ii) to install utilities services at the Premises, (iii) to install storm water management systems; (iv) for the installation and maintenance of equipment, utility wires, poles, cables, conduits, drainage lines, and pipes to accommodate Tenant's permitted use of the Premises hereunder extending from the nearest public right-of-way, over and across any property of Owner to the Premises; (v) to capture, use and convert the unobstructed solar resources over and across the Property; and (iv) for electromagnetic, visual, view, light, noise, vibration, electrical, or other effects attributable to the Solar Facility (collectively, the "Easements"). The Easements shall be located on the Property in the areas described and depicted in Exhibit B hereto, as the same may be amended in accordance with the terms hereof. The Easements granted hereunder shall be appurtenant to and a part of the Tenant's leasehold interest in the Premises and shall continue so long as this Lease is in effect. In the event that any utility company requires an easement not otherwise located with the area of the Easements to provide utilities services to Tenant, Owner agrees to grant such necessary easement to said utility company. Such additional easements in favor of the utility companies shall be located within the Property in an area(s) that is/are mutually approved by and acceptable to Owner, Tenant and such utility companies. Upon termination of the Lease and any extensions, the Tenant shall repair and remove any use equipment, utility wires, poles, cables, conduits, drainage lines, and pipes to accommodate Tenant's permitted use of the Premises utilities, including power generators, monitoring wells, lines and poles upon request by Owner at Tenant's sole expense and restore the condition of the such lands or Premise to the maximum extent feasible normal wear and tear excepted.

(h) The Easements are non-exclusive easements to and for the benefit of Tenant and its agents, employees, successors, assigns and business visitors. Tenant shall have the right to construct, maintain and repair electrical infrastructure and a roadway over the aforementioned Easements, including such work as may be necessary for slope and drainage, and to install such poles, wires, pipes, cables, conduits and related appurtenances as shall be necessary for the proper conduct of Tenant's business at the Premises and for electricity, water, telephone and gas services. If Owner or other tenants, employees, agents, contractors or invitees of Owner damage or disturb the Easements, then Owner or Owner's other tenants, employees, agents, contractors and invitees shall share in the reasonable and proportionate costs incurred to repair such Easements. Owner represents and warrants that Tenant's intended use of the Premises and the Easements does not conflict with any agreements, restrictions, covenants, conditions, easements or licenses, whether or not of record, that affect the Property, the Premises and/or the Easements. Upon termination of the Lease and any extensions, the Tenant shall repair and remove any use equipment, utility wires, poles, cables, conduits, drainage lines, and pipes to accommodate Tenant's permitted use of the Premises utilities, including power generators, monitoring wells, lines and poles upon request by Owner at Tenant's sole expense and restore the condition of the such lands or Premise to the maximum extent feasible normal wear and tear excepted.

(i) Tenant shall have 24-hours-a-day, 7-days-a-week access to the Premises and the Easements (the "Access") at all times during the Term of this Lease. Tenant shall have the right to park its vehicles on Owner's Property when Tenant is constructing, removing, replacing

and/or servicing its Solar Facility, provided that such parking does not unreasonably interfere with Owner's use of the Property.

Section 6. Assignment.

(a) Upon notice to Owner, Tenant shall have the right to assign or transfer its rights under this Agreement, in whole or in part, to any person or any business entity at any time, subject to the assignee assuming all of Tenant's obligations hereunder. After delivery by Tenant to Owner of an instrument of assumption by an assignee wherein such assignee assumes all of the obligations of Tenant under this Agreement, Tenant will thereafter be relieved of all liabilities and obligations pursuant to this Agreement.

(b) Subject to the terms of Section 10 hereof, Owner may assign its rights and obligations under this Agreement to its successor-in-interest in and to the Property without the prior consent of Tenant. The Parties hereto covenant and agree that, following any assignment by Owner, pursuant to Section 7 below, the Property, the Premises and the Easements shall remain subject to the Lease and the terms and provisions hereof and Tenant's rights, title, interests and remedies hereunder for the entire Term of this Lease. Owner agrees to acknowledge this "No Fixture" provision in any Notice of Lease requested by Tenant, which Notice of Lease may be recorded at Tenant's sole discretion. Owner shall notify Tenant in writing no fewer than fourteen (14) days before any transfer of all or any portion of the Property. Any such notice shall identify the transferee, the portion of the Property to be transferred, and the proposed date of the transfer. This Agreement shall survive any transfer, and that Owner shall use commercially reasonable efforts to protect Tenant's interest in this Lease in any conveyance or assignment negotiations.

(c) The parties hereby agree to record a notice of this Lease (the "Notice of Lease") in accordance with Section 25 hereof. This Agreement shall survive any transfer.

Section. 7. Title Covenants.

(a) During the Term, Owner shall take any and all actions requested by Tenant in a timely manner to cure any title defects revealed in the Title Report, or any exceptions listed in any draft title commitment or pro forma developed from the Title Report. Owner understands that time is of the essence during the period from the Commencement Date to the Commercial Operation Date, and agrees to use commercially reasonable efforts to assist Tenant with its due diligence of the Premises.

(b) The Parties hereto covenant and agree that all sales, leases and transfers of the Property or any part thereof, and the granting of any easement encumbering or interest in and to the Property or any part thereof, shall during the Term be subject and subordinate to this Lease and Tenant's rights and options hereunder and shall not adversely affect Tenant's use of the Property, Premises or the Easements as contemplated hereby. Owner shall notify Tenant in writing no fewer than sixty (60) days before any transfer of which Owner has knowledge of all or any portion of the Property. Any such notice shall identify the transferee, the portion of the Property to be transferred, any proposed conveyance documents, and the proposed date of the transfer.

(c) Owner acknowledges that Tenant needs access rights of record in order to permit and construct the Project, and otherwise fulfill the purpose of the Lease.

Section 8. **Taxes.**

(a) Owner will pay when due all real property taxes and assessments levied against Owner's Property and the improvements thereon by any governmental body (collectively, "**Taxes**"). Owner will send a copy of each tax bill to Tenant promptly upon Owner's receipt of the tax bill. Tenant will promptly pay or reimburse to Owner the Taxes, including any increase in the Taxes clearly and indisputably attributable to the construction of the Solar Facility during the Term, including any increase in the Taxes resulting from a reclassification of the Owner's Property for purposes of real estate taxation by reason of the construction or existence of the Solar Facility (but not including any increase in the Taxes resulting from a reclassification of the Owner's Property by reason of the existence of this Lease, or increased Taxes based on the rent hereunder, the income of either Owner or Tenant, or any other method of taxation other than traditional real estate taxes based on the value of real estate). Tenant's duty to reimburse shall exist only with respect to Taxes for tax years during the Term, and only for tax bills submitted to the Tenant within ten (10) business days of the date first rendered to Owner unless otherwise agreed to be extended by the Parties.

(b) Owner or Tenant (who ever pays such Taxes) will promptly send evidence to the other that the Taxes have been paid by Owner and/or Tenant. To the extent available from the taxing authority, Tenant shall also be entitled to receive a copy of each tax bill for the Owner's Property directly from the taxing authority during the term of this Lease. If Tenant or Owner fails to pay the Taxes when due, Tenant or Owner may take any and all lawful steps to protect its interests in the Premises and the easements granted in this Lease, including (a) making direct payments of Tenant's share of the Taxes to the taxing authority and (b) making payments of Owner's share of the Taxes, and in the case of any payment described in this clause (b), Tenant (i) may deduct the amount paid (including interest thereon at a rate of eighteen (18%) percent per annum or the maximum permitted rate, if lesser, and penalties, if any) from the Rent otherwise due to Owner, and (ii) is hereby granted a lien on the Owner's Property to secure repayment of such amounts (which lien may be enforced in the same manner as a mortgage under applicable law).

(c) Tenant and Owner shall reasonably cooperate with the other in any application made to have the Solar Facility assessed separately from the remainder of the Owner's Property. Tenant or Owner may contest the legal validity or amount of any Taxes for which each is responsible under this Lease, and may institute such proceedings as either considers necessary with prior notice to the other party. Owner, upon request of Tenant and at no out-of-pocket expense to Owner, will contest on behalf of Tenant, the legal validity or amount of any Taxes for which Tenant is responsible under this Lease.

Section 9. **[RESERVED]**.

Section 10. **Removal of Solar Facility.** Upon written request of Owner given to Tenant within ten (10) days of the expiration or earlier termination of this Agreement, or at Tenant's option, all personal property and trade fixtures of Tenant, specifically including, but not limited to, the Solar Facility, shall be removed by Tenant from the Premises within One Hundred Twenty (120) days after the expiration or earlier termination of this Agreement. Additionally, if any additional permits or governmental approvals are required in order for Tenant to complete the removal of the Solar Facility, Tenant shall comply with such requirements and complete its obligations under this paragraph as soon as commercially reasonable. Notwithstanding anything to the contrary set forth herein, upon the expiration or earlier termination of this Agreement, Tenant shall, at its sole cost and expense, restore the Property to its original condition, normal wear and tear excepted. Tenant shall have the right at any time during the Term of this Lease to remove the Solar Facility from the Premises without the consent of the Owner.

Section 11. **[RESERVED]**

Section 12. **Insurance.** Each of Owner and Tenant (or its contractor) shall, at its own cost and expense, maintain, with a company or companies licensed or qualified to do business in the State of Maine commercial general liability insurance with limits not less than \$2,000,000 for injury to or death of one or more persons in any one occurrence and the replacement cost for damage or destruction to the Project or Premises, as appropriate, in any one occurrence. Each Party shall be an additional insured under the other Party's policy. For the avoidance of doubt, Tenant's property insurance shall cover the Project, and Owner's property insurance shall cover the Premises and Property.

Section 13. **Termination.** Tenant may terminate this Agreement at any time, in its sole discretion, by giving written notice thereof to Owner at any time prior to 5:00 pm EST on the last day of the Feasibility Period. Further, this Agreement may be terminated by Tenant immediately, at any time, upon giving written notice to Owner, if: (a) Tenant cannot obtain all governmental certificates, permits, variances, leases or other approvals (each an "Approval"; collectively, the "Approvals") and/or any easements required for the installation and operation of the Solar Facility at the Premises as contemplated hereunder, (b) any Approval is canceled, terminated, or expires or lapses, (c) Owner fails to deliver to Tenant any curative document related to a Title Defect or non-disturbance agreement or subordination agreement required hereunder, (d) Owner fails to have proper ownership of the Property and/or authority to enter into this Agreement, (e) Tenant determines that the Property contains Hazardous Substances (as such term is defined in Section 15 hereof) and such Hazardous Substances were not introduced to the Property by Tenant and that Tenant is unwilling to take such risks associated with such Hazardous Substances notwithstanding the Indemnification of Owner as provided herein, in its sole discretion, or (f) Owner is in default hereunder and fails to cure such default within the periods specified in and otherwise in accordance with the terms of Section 18 hereof. Any termination of this Agreement pursuant to this Section 13 shall not constitute a waiver of Tenant's rights under Section 14 of this Agreement.

Section 14. **Indemnity.**

Owner and Tenant each agree to indemnify and hold harmless the other Party from and against any and all claims, losses, liabilities, obligations, damages, cost and expenses, including reasonable attorney fees (collectively, the "Losses"), to the extent caused by or arising out of (a) the acts or omissions of such Party in the operations or activities on the Property, the Premises and/or the Easements by the indemnifying Party or the employees, affiliates, agents, contractors, licensees, tenants (other than Tenant if Owner is the indemnifying Party) and/or subtenants of the indemnifying Party, or (b) a breach of or default by the indemnifying Party under this Lease that has not been cured in accordance with the terms hereof. Notwithstanding the foregoing, this indemnification shall not extend to Losses exclusively arising from the negligence or intentional misconduct of the indemnified Party. The indemnifying Party's obligations under this section are contingent upon (i) its receiving prompt written notice of any event giving rise to an obligation to indemnify the other Party hereto, and (ii) the indemnified Party's granting such indemnifying Party the right to control the defense and settlement of the matter for which indemnification is being given, provided that no such settlement shall be agreed to or otherwise effective unless the same has been approved in advance by the indemnified Party, such approval not be unreasonably withheld, and the indemnified Party shall have the right to participate in such defense with counsel selected by the indemnified Party, and all costs and expenses of such counsel selected by the indemnified Party shall be borne exclusively by the indemnified Party. The indemnified party shall promptly notify the indemnifying party of any Claim for which indemnification is sought, following actual knowledge of such Claim, provided however that the failure to give such notice shall not relieve the indemnifying party of its obligations hereunder except to the extent that such indemnifying party is materially prejudiced by such failure. In the event that any third party Claim is brought, the indemnifying party shall have the right and option to undertake and control of the defense of such action with counsel of its choice, provided however that (i) the indemnified party at its own expense may participate and appear on an equal footing with the indemnifying party in the defense of any such Claims, (ii) the indemnified party may undertake and control of such defense in the event of the material failure of the indemnifying party to undertake and control the same. This indemnity shall not give rise to any claim by any third party beneficiary to any rights pursuant to this Lease. NOTWITHSTANDING ANYTHING ELSE CONTAINED IN THIS CLAUSE, NEITHER PARTY SHALL BE LIABLE TO THE OTHER PARTY FOR ANY SPECIAL, CONSEQUENTIAL, PUNITIVE, EXEMPLARY OR OTHER EXTRAORDINARY DAMAGES. NEITHER PARTY SHALL HAVE ANY RIGHT TO INDEMNIFICATION IN THE CASE OF FORCE MAJEURE.

Section 15. **Hazardous Substances.**

(a) Owner hereby represents warrants that it has no knowledge of any substance, chemical or waste (collectively, the "Hazardous Substances") on the Property that is identified as hazardous, toxic or dangerous in any applicable federal, state or local law or regulation, except as identified and disclosed in any environmental reports prepared for Owner or Tenant. Owner agrees to promptly provide Tenant with any and all environmental reports, studies or information, including communications with any state or federal environmental agencies, in its possession or control concerning the Premises upon execution of this Lease or at any time during the Term. Owner has not introduced or used and shall not introduce or use any Hazardous Substance on the Property in violation of any applicable law. Owner shall be responsible for, and shall promptly conduct any investigation and remediation as required by any applicable

environmental laws, all spills or other releases of any Hazardous Substance caused solely by Owner, or any employee, agent, contractor, representative or affiliate thereof, that have occurred or may occur on the Property during the Term of this Lease.

(b) Tenant hereby represents and warrants that it shall not: (i) bury underground or discharge into the sewage system at the Premises any Hazardous Substances, or (ii) use the Premises as a storage site for Hazardous Substances, except minimal quantities used in the ordinary course of Tenant's business in accordance with all applicable environmental laws and regulations.

(c) Owner shall, without limitation, defend, indemnify and hold harmless Tenant from and against any and all claims or losses concerning hazardous substances or any other environmental harm or damage. In addition, any successor owner of the Owner's fee interest in the Premises shall be deemed to additionally assume the indemnification obligations of Owner, but such assumption shall not release Owner from its indemnification obligations hereunder.

Section 16. **Casualty and/or Condemnation.**

(a) If there is a condemnation of the Premises, the Easements and/or the Property (or a portion thereof which is sufficient to render the Premises and/or the Easements unsuitable for Tenant's purposes, in its sole discretion), including, without limitation, a transfer of the Premises, the Easements and/or the Property or a part thereof by consensual deed in lieu of condemnation, then this Lease shall, at the option of Tenant, terminate upon transfer of title to the condemning authority, without further liability to either Party hereunder (except as otherwise expressly provided herein). The Rent due hereunder shall be prorated to the date of taking, and Owner shall reimburse to Tenant any portion of the then current annual Rent attributable to the period subsequent to such taking that Tenant has paid to Owner. Tenant and Owner shall be entitled to pursue their own separate condemnation awards with respect to any such taking (which award to Tenant may include, where applicable, the value of the Solar Facility, moving expenses, prepaid rent to the extent not reimbursed to Tenant by Owner, and business interruption or dislocation expenses not reimbursed by insurance policies held by Tenant).

(b) If the Premises, the Easements and/or the Property are damaged or destroyed to an extent sufficient to render the Premises and/or the Easements unsuitable for Tenant's purposes, in Tenant's sole determination, Tenant shall have the right, but not the obligation, to elect to not rebuild, replace or repair any of its improvements, including the Solar Facility, and to terminate this Lease as of the date that such damage or destruction occurred, without prejudice to or otherwise affecting any rights or remedies that Tenant may have hereunder or at law or in equity, and the annual Rent due hereunder shall be prorated to such date of termination and reimbursed accordingly.

(c) Notwithstanding anything in this Agreement to the contrary, in the event of any casualty to or condemnation of the Property or any portion thereof during such time as any Security Instrument (as such term is hereinafter defined) shall remain unsatisfied, the Financing Entity in whose favor such Security Instrument has been granted shall be entitled to receive all insurance proceeds and/or condemnation awards (up to the amount of the indebtedness secured

by such Security Instrument) otherwise payable to Tenant and apply such proceeds in accordance with the terms of the Security Instrument, and shall further have the right, but not the obligation, to restore the Property in the event that the same is damaged or destroyed.

Section 17. **Quiet Enjoyment.**

(a) Owner covenants that Tenant, upon paying the Rent and performing the covenants hereof on the part of Tenant to be performed, shall and may peaceably and quietly have, hold and enjoy the Premises and the Easements and all related appurtenances, rights, privileges and easements throughout the Term hereof without any lawful hindrance by Owner and any person claiming by, through or under Owner. Except in cases of emergency, Owner shall not have access to the Premises unless accompanied by Tenant personnel.

(b) The Solar Facility shall be the exclusive property of and owned by Tenant. Owner covenants and agrees that neither the Solar Facility nor any part of the improvements constructed, erected or placed by Tenant on the Premises or the Easements shall become or be considered as being affixed to or a part of the Premises or the Easements, any and all provisions and principles of law to the contrary notwithstanding, it being the specific intention of Owner that the Solar Facility and all improvements of every kind and nature constructed, erected or place by Tenant on the Premises and the Easements shall be and remain the property of Tenant. Notwithstanding the foregoing, Owner and their heirs and assigns shall have the right to use the Easements in common with Tenant so long as such use does not unreasonably interfere with Tenant's operation of the Solar Facility. Owner agrees and acknowledges that none of Tenant's assets and properties, including, without limitation, the Solar Facility and Tenant's trade fixtures, shall become the property of Owner upon termination or expiration of the Lease. Owner hereby waives any and all lien rights and/or security interests it may have, statutory or otherwise, in or otherwise with regard to the Solar Facility or any portion thereof.

(c) If Owner owns or otherwise controls land adjacent to the Premises, the Easements or the Property, Owner agrees for itself and all future holders of the Property and/or such adjacent land that no use shall be made of the Property and/or such adjacent land during the Term hereof that would materially interfere with Tenant's use of the Premises and the Easements as described herein, including, without limitation, the operation of any solar facilities by any Party other than Tenant or its successors or assigns hereunder.

(d) Owner hereby represents and warrants to Tenant that: (i) Owner is the fee owner of the Property, the Premises and the Easements and the lands immediately adjacent thereto which comprise the Easements and rights of way granted to Tenant hereunder, (ii) such ownership is free and clear of all liens, claims and encumbrances or those liens or encumbrances which do not interfere with Tenant's use of and operations at the Premises and the Easements, including the Solar Facility as proposed on Exhibit C; (iii) Owner has the lawful right and authority to execute this Lease and to grant the leasehold interests, easements, rights of way and other rights described herein; (iv) the Property (including the Premises and the Easements), and all improvements located thereon (other than improvements constructed by Tenant), are in substantial compliance with all laws, rules, regulations and ordinances, including, but not limited to, building, life/safety, disability and other laws, codes and regulations of applicable

governmental authorities; and (v) Owner has obtained and delivered to Tenant or will obtain and deliver to Tenant the consents of all Parties other than Owner that hold any encumbrance upon or interest in the Premises and/or the Easements to the existence, execution and delivery of this Lease, the granting of a leasehold interest in the Premises and the granting of the Easements to Tenant in accordance with the terms hereof, and Tenant's and its successors and assigns utilization of the Premises and the Easements for the purposes described herein, together with a non-disturbance and attornment agreement as required by Section 22 of this Lease.

Section 18. **Default.**

(a) Notwithstanding anything contained herein to the contrary (other than the terms of Section 21 below), and without waiving any other rights granted at law or in equity, if either Party is in default under this Lease for a period of (i) ten (10) days following receipt of notice of default from the non-defaulting Party with respect to a default which may be cured solely by the payment of money, (ii) thirty (30) days following receipt of notice from Tenant if Owner shall violate, neglect or fail to perform or observe any of the representations, covenants, provisions, or conditions contained in this Lease on its part to be performed or observed; or (iii) 60 days following receipt of notice of default from the non-defaulting Party with respect to any other default not listed in (i) or (ii), then, in either event, the non-defaulting Party shall have the remedies detailed in Section 18(b) hereof.

(b) If an event of default is ongoing for after the cure periods detailed in Section 18(a), the Parties shall have the following rights:

- i. Termination. Either Party may terminate this Lease upon thirty (30) days' notice. If a non-monetary default may not reasonably be cured within such sixty (60) day period, the Lease may not be terminated if the defaulting Party commences action to cure the default within such sixty (60) day period and proceeds with due diligence to fully cure the default as soon as reasonably practicable thereafter.
- ii. Payment of Termination Payment for Owner Default. If Tenant terminates this Agreement as a result of an Owner default, Owner shall pay to Tenant a termination payment equal to the fair market value of Tenant's remaining leasehold interest, as determined by appraisal (the "Termination Payment").
- iii. Tenant Right to Cure. In the event that Owner shall fail, refuse or neglect to cure any event of default contained in a notice from Tenant to Owner, Tenant may, at its option, incur any reasonable expense necessary to perform the obligation of Owner specified in such notice and bill Owner for the costs thereof, including reasonable attorney's fees. If Owner fails to reimburse Tenant for such reasonable costs within thirty (30) days after Owner's receipt of such bill, Tenant may deduct such costs from the next due installments of Rent, until such costs are recouped by Tenant.

Section 19. **Collateral Assignment.**

(a) Tenant may collaterally assign, pledge, mortgage and/or grant a security interest to and/or otherwise encumber in favor of any third Party (each, a “Financing Entity”; collectively, the “Financing Entities”), as security for any loan or other financing relationship, all of Tenant’s right, title and interest in: (i) this Agreement; (ii) the Premises, (iii) the Easements, (iv) the Solar Facility, and (v) any other personal property owned by Tenant and located at the Property, all without the consent of Owner. Tenant shall also have the right to obtain, at its sole expense, a title insurance policy insuring its leasehold interest in and to the Premises and its easement interest in the Easements.

(b) Financing Entity may: (i) enforce its rights under its leasehold mortgage and/or other loan and security documents (each, a “Security Instrument”; collectively the “Security Instruments”) that encumber or otherwise convey a security or other interests in and to the property and assets of Tenant, including, but not limited to, Tenant’s leasehold interest in the Premises and easement interest in the Easements and its rights, title and interests in and to this Agreement, the Solar Facility, and all other improvements, equipment and other personal property of Tenant located at the Premises and within the Easements, (ii) acquire title to Tenant’s interest in the Premises and the Easements under this Agreement in any lawful way, (iii) pending foreclosure of such Security Instruments, take possession of the Premises and the Easements, and (iv) obtain, at such Financing Entity’s or Tenant’s sole expense, a title insurance policy insuring those Security Instruments in favor of the Financing Entity that encumber Tenant’s leasehold interest in the Premises and easement interest in the Easements. In connection with a Financing Entity’s acquisition of such a title insurance policy, Owner shall promptly execute and deliver to the title company that is issuing such policy such landowner affidavits and/or certificates that the title company may reasonably request. If a Financing Entity shall acquire title to Tenant’s interest in this Agreement by whatever lawful means, including, without limitation, by foreclosure or otherwise, then the Financing Entity may freely assign this Agreement without Owner’s consent, provided such assignee assumes all of Tenant’s obligations under this Agreement.

(c) Owner may pledge the Rent or otherwise encumber its interest in this Agreement to any third Party, as security for any loan or other financing, without the consent of Tenant. This Agreement shall run with the Property and shall be binding upon and inure to the benefit of the Parties hereto and their respective successors, personal representatives, heirs and assigns.

Section 20. **Estoppel Certificates.**

(a) Owner shall from time to time, within ten (10) days after receipt of Tenant’s written request therefor, deliver to Tenant a written statement (to be prepared by Tenant and provided with the request) addressed to Tenant and/or to any Financing Entity (as specified by Tenant) (each an “Estoppel Certificate”) substantially in the form of Exhibit G hereof.

(b) Without in any way limiting Tenant’s rights and remedies arising out of Owner’s failure to timely provide an Estoppel Certificate as required by this Section 20, such failure by Owner to deliver an Estoppel Certificate in accordance with the terms hereof shall be conclusive evidence that: (i) this Agreement is in full force and effect, without modification except as may

be represented by Tenant; (ii) that there are no uncured defaults by Tenant or Owner hereunder; and (iii) the annual Rent for the then current month has not been paid in advance by Tenant.

Section. 21. **Mortgage Protection.** The following provisions shall be effective at any time that Owner has received notice that Tenant has mortgaged its leasehold interest under this Lease and/or granted a security interest in the Solar Facility and/or any other assets or property of Tenant located at the Premises and within the Easements:

(a) After receipt by Tenant of a notice of default under this Lease and the expiration of any applicable cure period hereunder, Owner shall deliver to each Financing Entity that holds a Security Instrument an additional notice (the "Financing Entity Notice") which specifies the default by Tenant and states that Tenant's cure period has expired without such default being cured. Tenant shall be exclusively responsible for providing to Owner written notification of the notice addresses for each Financing Entity that holds or is otherwise a Party to a Security Instrument. Each such Financing Entity shall thereupon have the right, but shall not in any manner whatsoever be obligated, to cure such default within the applicable time periods set forth below in this Section 21, and without the payment of any default charges, fees, late charges or interest that might otherwise be payable by Tenant hereunder, except a late fee of 5% for any delinquent payment and interest of 1% per month beginning one month after a delinquent payment was due. Owner shall not terminate the Lease or exercise its other rights or remedies under the Lease:

- (i) If such default can be cured other than by the payment of money exclusively and within thirty (30) days after the Financing Entities' receipt of such Financing Entity Notice one of more of the Financing Entities (A) cures such default, or (B) if such default reasonably requires more than thirty (30) days to cure, commences to cure said default and diligently prosecutes the same to completion; or
- (ii) If such default can only be cured by the payment of money and within fifteen (15) days after the Financing Entities' receipt of such Financing Entity Notice one of more of the Financing Entities cures such default.

(b) Owner hereby agrees and acknowledges that the Financing Entities that hold or are otherwise Parties to the Security Instruments shall have the right to access the Premises and the Easements and exercise any other rights of Tenant under this Lease to the extent necessary to cure, pursuant to this Section 21, default by Tenant under this Lease. Owner hereby agrees to accept performance by any of the Financing Entities of all cures, conditions and covenants under this Lease as though performed by Tenant.

(c) If the Financing Entities or any of them commence enforcement of their rights and remedies under the Security Instruments, then upon the acquisition by the Financing Entities or any of them of Tenant's rights, title and interests in and to the Lease, such Financing Entities shall cure all outstanding defaults of Tenant under the Lease that are reasonably capable of being cured by the Financing Entities within the time periods set forth in Section 21(a)(i) and (ii) above (excluding any bankruptcy or insolvency of Tenant), and: (i) Owner shall treat such Financing

Entities as the tenant(s) and Tenant(s) under the Lease, (ii) such Financing Entities shall own and may exercise all rights, title and interests (including, without limitation, any security or other deposits or other impound payments), and shall be deemed to have assumed all obligations of, Tenant under the Lease, and (iii) the Lease will continue and remain in full force and effect in accordance with the terms hereof. If the Financing Entities cure all outstanding defaults by Tenant under the Lease but do not acquire all of Tenant's rights, title and interests under the Lease, or if the Financing Entities commence enforcement of their rights and remedies under the Security Instruments, and thereafter Tenant cures such defaults (which cure Owner is hereby be obligated to accept) and the Financing Entities then terminate their enforcement actions, then the Lease shall remain in full force and effect between Owner and Tenant.

(d) No modification or termination of the Lease shall be effective without the prior written consent of the Financing Entities that hold or are otherwise Parties to the Security Instruments. No notice of default by Owner to Tenant shall be effective unless a copy thereof is delivered concurrently to each Financing Entity that holds or is otherwise a Party to a Security Instrument (provided that Tenant has delivered to Owner the most recent notice addresses for such Financing Entities). Owner agrees that no default or termination of the Lease shall occur solely as a result of any of the Financing Entities enforcing their respective remedies under the Security Instruments.

(e) In connection with any foreclosure or similar action relating to the personal property of Tenant, the Financing Entities, or their respective representatives, may enter the Premises and the Easements solely for the purpose of timely removal of such personal property and other purposes incidental to implementing such action, without liability therefore, provided that such activities by the Financing Entities shall not unreasonably interfere with or disturb Owner or any other tenants of Owner, and the Financing Entities shall pay for any physical damage to the Premises, the Easements and/or the Property actually caused by the Financing Entities or their respective representatives in removing such personal property from the Premises and the Easements.

(f) The Parties hereto agree and acknowledge that if the Lease is rejected or disaffirmed as part of any bankruptcy, reorganization or insolvency proceeding commenced with respect to Tenant, Owner shall, at the request of the Financing Entities or any of them, enter into a new lease of the Premises and a new grant of the Easements with such requesting Financing Entities for the then balance of the Term of the Lease, provided that such Financing Entities cure Tenant's then outstanding monetary defaults under the Lease (excluding any bankruptcy or insolvency) and undertake to cure all outstanding non-monetary defaults by Tenant under the Lease within thirty (30) days after the commencement date of such new lease, provided further that if such non-monetary defaults cannot be cured within thirty days, such Financing Entities shall commence to cure such defaults within said 30 day period and diligently thereafter complete such cure within a reasonable period of time not to exceed 90 days, and such new lease shall contain the same rent, covenants, terms and conditions as set forth in the Lease. The provisions of this Section 21(f) shall survive the termination of the Lease and shall continue in full force and effect thereafter.

(g) Owner shall also provide Lessee with any further assurances and shall execute any Notices of Lease, Owner's Consents to financing (which shall be in substantially similar form as that provided in Exhibit D attached hereto and made part hereof), estoppel certificates, consents to assignments or additional documents that may be reasonably necessary for recording purposes or otherwise reasonably requested by Tenant or Tenant's Financing Entities.

Section 22. **Subordination and Non-Disturbance.**

(a) Tenant acknowledges that prior to the Commencement Date, Owner may have granted, and on or after the Commencement Date Owner may grant, a mortgage(s), deed(s) of trust or other security instrument (collectively, the "Fee Mortgages"; individually, a "Fee Mortgage") which encumber some or all of the Premises and/or the Easements to certain institutions or persons (collectively, the "Fee Mortgagees"; individually, a "Fee Mortgagee").

(b) With regard to each Fee Mortgage that is in effect and/or of record on or prior to the recordation of the Notice of Lease (as such term is hereinafter defined), Owner will request from the Fee Mortgagee thereunder that such Fee Mortgagee execute and deliver to Tenant a subordination, attornment and non-disturbance agreement among Owner, such Fee Mortgagee and Tenant pursuant to which: (i) Tenant confirms that this Lease is subordinated to the Fee Mortgage granted to such Fee Mortgagee and Tenant will attorn to such Fee Mortgagee in the event that the Fee Mortgagee acquires title to the Property; and (ii) such Fee Mortgagee agrees to honor the Lease, and that the Lease shall remain in full force and effect and shall not be terminated, and Tenant shall be permitted to exercise all of its rights and remedies thereunder, as long as Tenant is not in default under the Lease, even in the event of foreclosure under the Fee Mortgage to which such Fee Mortgagee is a Party (each an "SNDA Agreement"; collectively, the "SNDA Agreements"). If Owner fails to deliver to Tenant on or prior to the recordation of the NOL an SNDA Agreement for each Fee Mortgage that is in effect and/or of record on or prior to the recordation of the NOL, then Tenant shall have the right, in its sole discretion, to terminate this Lease by proving written notice thereof to Owner, and upon such termination neither of the Parties hereto shall have any further obligations or liabilities hereunder.

(c) With regard to each Fee Mortgage that is in effect and/or of record after the recordation of the NOL, Tenant shall promptly enter into an SNDA Agreement with Owner and the Fee Mortgagee thereunder. If Tenant fails to deliver such SNDA Agreement to Owner, then Owner shall have the right, in its sole discretion, to terminate this Lease by proving written notice thereof to Tenant, and upon such termination neither of the Parties hereto shall have any further obligations or liabilities hereunder.

(d) The Parties hereto covenant and agree that notwithstanding anything to the contrary set forth herein, the form and terms of each SNDA Agreement shall be mutually approved by and acceptable to Owner, Tenant, Tenant's Leasehold Mortgagee and the Fee Mortgagee that is a Party to such SNDA Agreement.

Section 23. **Memorandum of Lease.** At Tenant's request, Owner shall at this time or at any time on or before the Commencement Date execute, acknowledge and deliver to Tenant for recording a Memorandum/Notice of Lease (the "NOL") substantially in the form of Exhibit D

attached hereto, which may be modified to incorporate any revisions to Exhibit B and Exhibit C in accordance with the terms hereof. In the event of an amendment to the Exhibit B and Exhibit C following recording of the NOL, Owner agrees to execute, acknowledge and deliver to Tenant a revised NOL for recording. Owner hereby grants to Tenant permission to insert the Commencement Date and the expiration date of the Initial Term of this Agreement into the NOL after execution of the NOL and to record the NOL in the Cumberland County Registry of Deeds, pursuant to 33 M.R.S. §201.

Section 24. **Miscellaneous.**

(a) Owner represents and warrants that each person executing this Agreement on behalf of Owner represents individually that such person has the authority to execute this Agreement on behalf of Owner.

(b) Tenant warrants and represents that it is duly authorized to do business in the state in which the Property is located and that the undersigned representative of Tenant is fully authorized by Tenant to enter into this Agreement on behalf of Tenant.

(c) This Agreement sets forth and contains the entire agreement between the Parties hereto regarding the subject matter hereof, and supersedes all prior discussions, agreements and negotiations between the Parties with regard to the subject matter hereof.

(d) The Parties may sign this Agreement in multiple counterparts, each of which, when executed, shall be deemed to be an original instrument, and all of which, taken together, shall constitute one and the same agreement.

(e) The terms and conditions of this Agreement shall extend to and bind the heirs, personal representatives, successors and assigns of Owner and Tenant.

(f) The prevailing Party in any action or proceeding in court to enforce the terms of this Agreement shall be entitled to receive its reasonable attorneys' fees and other reasonable enforcement costs and expenses from the non-prevailing Party.

(g) Notices, requests, and other communication shall be in writing and sent by United States Mail, postage prepaid, certified or registered with return receipt requested, or by any nationally recognized overnight courier service for priority delivery, to the respective addresses set forth below. Any such notice shall be deemed given when deposited in the United States Mail or delivered to such courier service. Notices shall be sent to:

For Tenant:

Sun-REA, LLC
718 W. Business Highway 60
PO Box 639
Dexter, MO 63841
For Owner:

Pequawket Trail Baldwin Solar, LLC
718 W. Business Highway 60
PO Box 639
Dexter, MO 63841

(h) This Agreement shall be governed by and construed in accordance with the laws of the State of Maine in which the Property is located, without giving effect to the conflicts of laws rules of such state.

(i) Neither Tenant nor Owner shall disclose the financial or other terms of this Agreement to third Parties (other than either Party's employees, attorneys, lenders and accountants) without the express written consent of the non-disclosing Party hereto.

(j) Owner's recourse against any Financing Entity shall be expressly limited to such Financing Entity's interest in this Agreement.

(k) All Exhibits attached hereto and the terms and provisions thereof are incorporated herein by this reference for all purposes. The Parties agree and acknowledge that all Exhibits may be attached to this Lease and in preliminary form. Accordingly, the Parties agree that upon preparation of the final exhibits to be used in Tenant's applications for the Approvals, the same shall also be attached to and shall constitute the final Exhibits A, B, and/or C as the case may be, to this Lease and the NOL, provided that such final Exhibits shall substantially conform to the preliminary Exhibits and that any deviations therefrom shall be approved by Owner, which approval shall not be unreasonably withheld.

(l) Owner is not represented by any broker or any other leasing agent in connection with the transactions contemplated by this Lease. Owner shall be responsible for and shall pay when due any commissions, fees and/or other payments to such agent, and agrees to indemnify and hold Tenant harmless from all claims by such broker or anyone claiming through such broker with regard to such commissions, fees and payments. If Tenant is represented by any broker or any other leasing agent in connection with the transactions contemplated by this Lease, Tenant shall be responsible for and shall pay when due all commissions, fees and/or other payments to such agent, and agrees to indemnify and hold Owner harmless from all claims by such broker or anyone claiming through such broker with regard to such commissions, fees and payments.

(m) This Agreement may not be amended, supplemented or restated except by a written instrument that has been executed and delivered by each of the Parties hereto.

(n) The waiver by any Party hereto of a breach of any provision of this Lease shall not bar or be construed as a waiver of any subsequent breach by any Party. A delay in enforcing a Party's rights shall not constitute or operate to act as a waiver of any breach.

(o) The effective date of this Lease shall be the date of execution by the last signatory of a Party to execute this Lease (the "Effective Date").

(p) If any provision of this Lease is found by a court of competent jurisdiction to be unenforceable or illegal, such findings shall not impair the remaining provisions of this Lease and the remainder of this Lease shall be enforceable as if such illegal or invalid provision had not been contained within this Lease.

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IN WITNESS WHEREOF, the Parties do hereby execute this Agreement as of the Effective Date.

OWNER:

Sun-REA, LLC

By: Renewable Energy Alternatives, LLC, its
Manager

By: 
Name: Natalie D. Riley, Manager

TENANT:

Pequawket Trail Baldwin Solar, LLC

By: Sun-REA, LLC, its Manager

By: Renewable Energy Alternatives, LLC, its
Manager

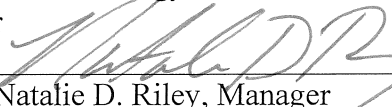
By: 
Name: Natalie D. Riley, Manager

EXHIBIT A

LEGAL DESCRIPTION OF PROPERTY

A certain lot or parcel of land with the improvements thereon on the southwesterly side of and adjacent to Pequawket Trail, also known as State Highway 113/U.S. Route 5, in the Town of Baldwin, County of Cumberland, State of Maine as depicted on a plan titled "ALTA/NSPS Land Title Survey of Baldwin Solar, Route 113, Baldwin, Maine, 04024 for Sun-REA, LLC, 26 Market Street, Portsmouth, NH 03801" dated June 1, 2020 and revised through July 13, 2020 by Sebago Technics, Inc., Project Number 19447 and being more particularly bounded and described as follows:

Beginning at an existing 6-inch x 6-inch granite "H" monument, 8-inches above grade with drill hole on the southwesterly side of Pequawket Trail, also known as State Highway 113/U.S. Route 5;

Thence S 70°-37'-53" W, along remaining land of Baldwin Pit, LLC as described in a deed recorded at the Cumberland County Registry of Deeds (CCRD) in Book 35516, Page 61, a distance of 100.00 feet to a point;

Thence S 60°-29'-35" W, along remaining land of Baldwin Pit, LLC a distance of 83.15 feet to a point;

Thence S 15°-12'-56" W, along remaining land of Baldwin Pit, LLC a distance of 555.71 feet to a point;

Thence S 45°-13'-56" W, along remaining land of Baldwin Pit, LLC a distance of 86.24 feet to a point;

Thence S 61°-09'-08" W, along remaining land of Baldwin Pit, LLC a distance of 97.23 feet to a point;

Thence S 89°-53'-39" W, along remaining land of Baldwin Pit, LLC a distance of 246.21 feet to a point;

Thence S 57°-54'-50" W, along remaining land of Baldwin Pit LLC a distance of 17.50 feet to land now or formerly of the State of Maine as described in a deed recorded at the CCRD in Book 26022, Page 220;

Thence N 32°-05'-10" W, along land now or formerly of the State of Maine, a distance of 1,117.87 feet to a point at the southwesterly corner of remaining land of Baldwin Pit, LLC;

Thence N 29°-32'-21" E, along remaining land of Baldwin Pit, LLC a distance of 734.73 feet to a point at land now or formerly of Scott Harmon, as described in a deed recorded at the CCRD in Book 33941, Page 218;

Thence S 82°-27'-58" E, along land now or formerly of Scott Harmon, passing through an existing 1.25-inch iron pipe, 4-inches above grade at a distance of 27.00 feet and continuing a total distance of 480.65 feet to an existing 6-inch triangular concrete monument, 12-inches above grade at the northwesterly corner of land now or formerly of John O. Sanborn, III and Linda Sanborn as described in a deed recorded at the CCRD in Book 15912, Page 173;

Thence S 09°-12'-43" E, along land now or formerly of John O. Sanborn, III and Linda Sanborn, a distance of 153.50 feet to an existing 6-inch triangular concrete monument, 6-inches above grade;

Thence N 74°-30'-17" E, along land now or formerly of John O. Sanborn, III and Linda Sanborn, a distance of 185.33 feet to a point on the southwesterly side of Pequawket Trail, also known as State Highway 113/U.S. Route 5, this point being S 74°-30'-17" W, a distance of 18.41 feet from an existing 6-inch triangular concrete monument, 6-inches above grade;

Thence along a circular curve concave to the West and the southwesterly side of along Pequawket Trail as defined by the following curve elements: having a radius of 5,679.65 feet, an arc length of 631.16 feet and a chord that bears S 23°-50'-31" E, a distance of 630.84 feet to a point;

Thence continuing along a circular curve concave to the West and the southwesterly side of Pequawket Trail as defined by the following curve elements: having a radius of 5,679.65 feet, an arc length of 60.14 feet and a chord that bears S 20°-21'-18" E, a distance of 60.14 feet to a point;

Thence continuing along a circular curve concave to the West and the southwesterly side of Pequawket Trail as defined by the following curve elements: having a radius of 5,679.65 feet, an arc length of 67.71 feet and a chord that bears S 19°-42'-36" E, a distance of 67.71 feet to the Point of Beginning.

The area of the herein described parcel is approximately 30.04 acres. For purposes of reference only, the above-described premises is shown on the Town of Baldwin Tax Map 11 as Lot 74.

Bearings herein are based on Grid North, Maine State Plane Coordinate System, West Zone 1802, NAD83.

EXCEPTING AND RESERVING UNTO THE GRANTOR, its successors and assigns, HOWEVER, an easement and right of way for the benefit of Grantor's remaining property, for ingress and egress by vehicles and pedestrians (with the right to improve the surface, including but not limited to paving) and to install, maintain, repair and replace any underground or above ground utilities over, under and across the following described parcel:

An easement on the southwesterly side of Pequawket Trail, also known as Route 113 or Route 5, in the Town of Baldwin, County of Cumberland, State of Maine as depicted on a plan titled "ALTA/NSPS Land Title Survey of Baldwin Solar, Route 113, Baldwin, Maine, 04024 for Sun-REA, LLC, 26 Market Street, Portsmouth, NH 03801" dated June 1, 2020 by Sebago Technics, Inc., Job number 19447, being more particularly bounded and described as follows:

Commencing at a drill hole in a 6-inch by 6-inch granite highway monument found 8-inches above grade on the westerly sideline of Pequawket Trail, also known as Route 113 or Route 5 at the southeasterly corner of a proposed lot conveyed hereby as described above;

Thence N 20°00'48" W, a distance of 127.85 feet to the Point of Beginning;

Thence along a circular curve concave to the West along Pequawket Trail as defined by the following curve elements: having a radius of 5,679.65 feet, an arc length of 60.14 feet, and a chord that bears S 20°21'18" E a distance of 60.14 feet;

Thence S 65°46'55" W, through land to be sold to Sun-REA, LLC a distance of 109.58 feet;

Thence S 00°12'16" W, through land to be sold to Sun-REA, LLC a distance of 68.18 feet to remaining land of Baldwin Pit, LLC;

Thence S 60°29'35" W, along remaining land of Baldwin Pit, LLC a distance of 50.20 feet;

Thence S 15°12'56" W, along remaining land of Baldwin Pit, LLC a distance of 153.13 feet;

Thence S 38°12'41" W, through land to be sold to Sun-REA, LLC a distance of 82.49 feet;

Thence S 27°53'24" W, through land to be sold to Sun-REA, LLC a distance of 25.72 feet;

Thence S 00°20'06" W, through land to be sold to Sun-REA, LLC a distance of 103.76 feet;

Thence S 54°36'16" W, through land to be sold to Sun-REA, LLC a distance of 41.36 feet;

Thence S 00°00'00" E, through land to be sold to Sun-REA, LLC a distance of 142.75 feet to remaining land of Baldwin Pit, LLC;

Thence S 15°12'56" W, along remaining land of Baldwin Pit, LLC a distance of 31.57 feet;

Thence S 45°13'56" W, along remaining land of Baldwin Pit, LLC a distance of 86.24 feet;

Thence S 61°09'08" W, along remaining land of Baldwin Pit, LLC a distance of 97.23 feet;

Thence S 89°53'39" W, along remaining land of Baldwin Pit, LLC a distance of 246.21 feet;

Thence S 57°54'50" W, along remaining land of Baldwin Pit, LLC a distance of 17.50 feet to land now or formerly of the State of Maine as described in a deed recorded at the CCRD in Book 26022, Page 220;

Thence N 32°05'10" W, along land of the State of Maine a distance of 60.00 feet;

Thence N 57°54'50" E, through land to be sold to Sun-REA, LLC a distance of 34.69 feet;

Thence N 89°53'39" E, through land to be sold to Sun-REA, LLC a distance of 248.03 feet;

Thence N 61°09'08" E, through land to be sold to Sun-REA, LLC a distance of 73.46 feet;

Thence N 45°13'56" E, through land to be sold to Sun-REA, LLC a distance of 54.03 feet;

Thence N 15°16'35" E, through land to be sold to Sun-REA, LLC a distance of 28.27 feet;

Thence N 00°00'00" W, through land to be sold to Sun-REA, LLC a distance of 151.09 feet;

Thence N 54°36'16" E, through land to be sold to Sun-REA, LLC a distance of 41.58 feet;

Thence N 00°20'06" E, through land to be sold to Sun-REA, LLC a distance of 87.73 feet;

Thence N 27°53'24" E, through land to be sold to Sun-REA, LLC a distance of 45.85 feet;

Thence N 38°12'41" E, through land to be sold to Sun-REA, LLC a distance of 75.70 feet;

Thence N 15°12'56" E, through land to be sold to Sun-REA, LLC a distance of 165.95 feet;

Thence N 60°29'35" E, through land to be sold to Sun-REA, LLC a distance of 40.38 feet;

Thence N 00°12'16" E, through land to be sold to Sun-REA, LLC a distance of 71.99 feet;

Thence N 65°46'55" E, through land to be sold to Sun-REA, LLC a distance of 152.28 feet to the Point of Beginning.

Containing approximately 1.74 Acres.

Bearings contained herein are based on Grid North Maine State Plane Coordinate System West Zone 1802, NAD83.

EXHIBIT B

LEGAL DESCRIPTION OF THE PREMISES AND THE EASEMENTS

To be updated by the Parties prior to the Commencement Date in accordance with Section 1 of this Agreement.

EXHIBIT C

PROPOSED DEPICTION OF THE SOLAR FACILITY

The location and the size of the Solar Facility is subject to change based on existing conditions, wetlands delineation, geotechnical investigation, permitting, and feedback from the utility.

[to be inserted]⁴

⁴ NTD: Tenant to provide.

EXHIBIT D

MEMORANDUM/NOTICE OF LEASE

NOTICE OF LEASE

In accordance with the provisions of Maine Revised Statutes Chapter 33, Section 201, notice is hereby given of the Land Lease Agreement for Solar Project (the “***Lease***”) dated of even date herewith.

LANDLORD: [_____] , with a mailing address of [_____]

TENANT: [_____] , LLC with a mailing address of P.O. Box 1320,
Portsmouth, NH 03802

DESCRIPTION OF
LEASED PREMISES: The Leased Premises consists of approximately [__] acres
located at [_____] , Maine (known as a portion of
[_____] Assessor’s Map [__], [__], more
particularly described in Exhibit A attached hereto and depicted
in Exhibit B attached hereto.

For Landlord’s title to the Leased Premises, reference is herein
made to that certain deed recorded at the [] County Registry of
Deeds at Book [], Page [].

EFFECTIVE DATE OF
LEASE: [_____]

LEASE
COMMENCEMENT
DATE: The date upon which Tenant sends a notice to the Owner that
Tenant wishes to commence the Lease Term, as more
specifically set forth in the Lease.

TERM OF LEASE: Twenty (20) years from Commercial Operation Date

RIGHTS OF
EXTENSION: Three (3) five (5) year Renewal Terms

NO FIXTURE: The Solar Facility (as defined in the Lease) installed and
operated by Tenant at the Leased Premises shall not be deemed
a fixture. The Solar Facility is Tenant’s personal property and
Landlord has no right, title or interest in the Solar Facility.
Further, Landlord has waived all right of levy for rent, all claims
and demands against the Solar Facility and all rights it may have
to place a lien on the Solar Facility.

**EXCLUSIVE RIGHT TO
GENERATE ELECTRICITY
ON THE PROPERTY:**

Tenant shall have the sole and exclusive right to convert and store all of the solar resources of the Property (as defined in the Lease) to electrical energy during the term of the Lease. Neither Landlord nor any third party shall hereafter be entitled to generate (other than for temporary emergency generator service) or store electricity anywhere on the Property.

**OWNER'S EXCLUSIVE
RIGHT REGARDING
ELECTRICITY
GENERATION FACILITIES
ON THE PROPERTY:**

Throughout the Term of the Lease, Landlord shall not: (a) lease, license or grant any easement or other right, or permit the assignment, sublease, license or other use of, any portion of the Property for the operation of any equipment or any solar electricity related installations designed to produce electricity from the sun, or any other source of light, or to store any such electricity, or (b) permit any vegetation or any other Improvements (as defined in the Lease) to be installed or grown on the Property that may block or otherwise interfere with sunlight of any other source of light reaching the Solar Facilities without the prior written consent of Tenant.

EASEMENTS:

Those certain easements recorded as of even date herewith and referencing the Property.

IN WITNESS WHEREOF, the parties hereto have set their hands and seal as of the ____ day of ____ 2019.

OWNER:

By: _____
Name: _____
Title: _____

STATE OF _____
COUNTY OF _____, ss.

At _____ in said County, this ____ day of ____, 2019 personally appeared _____ and [s]he acknowledged the within instrument, by her signed, to be her free act and deed.

Before me,

Notary Public
My Commission Expires:

TENANT

[_____] , LLC,

By: _____
Name: Robert Lambert
Title: Manager

STATE OF NEW HAMPSHIRE
COUNTY OF _____, ss.

On this ____ day of ____, 2019 personally appeared Robert Lambert, duly authorized Senior Vice President of SunRaise Development, LLC, and he/she acknowledged the within instrument, by him/her signed, to be his free act and deed and the free act and deed of SunRaise Development, LLC.

Before me,

Notary Public
My Commission Expires:

EXHIBIT A

Legal Description

EXHIBIT B

Depiction of Leased Premises

EXHIBIT E

LANDLORD ESTOPPEL CERTIFICATE AND AGREEMENT

Pequawket Trail Baldwin Solar, LLC

P.O. Box 1320

Portsmouth, NH 03802

Re: Land Lease Agreement for Solar Project dated July __, 2020 (the “Lease”) by and between Sun-Rea, LLC, a Delaware limited liability company (“Landlord”) and Pequawket Trail Baldwin Solar, LLC, a Delaware limited liability company (the “Tenant”) for the premises, which is part of that certain parcel of real property owned by Landlord at 1093 Pequawket Trail, Baldwin, ME 04024, located in the County of Cumberland, Maine and more particularly described in the Lease (the “Leased Premises”)

Ladies and Gentlemen:

The undersigned Landlord does hereby certify to Tenant and Investor, and their successors and assigns, their potential lenders and their members, managers and other participants, and their respective successors and assigns, as follows:

1. Until such time as all liabilities and obligations of Tenant and its affiliates to Lender have been paid and performed in full, Landlord hereby waives, releases and relinquishes to Lender all right, title, interest, claim and lien which Landlord has or may in the future have, under any and all applicable laws, including statutory rights, in, to or against any assets and other personal property of Tenant, including without limitation, solar panels, transformers, inverters, racking, inventory, shelving, equipment, machinery, furniture, fixtures, and books and records, whether now owned or hereafter acquired by Tenant or any other party other than Landlord, and located at any time on the Leased Premises (collectively, the “**Personal Property**”). So long as there is no default under the Lease, beyond any applicable notice and cure period, the Personal Property shall not be subject to levy, sale on distress or distraint for rent or any claim, lien or demand of any kind by Landlord.
2. Landlord authorizes Lender, its attorneys, agents and employees to enter on the Leased Premises and to take possession of, remove or dispose of the Personal Property at any time.
3. Notwithstanding any term of the Lease or any amendments, modifications, extensions or renewals thereof, or any contrary intent that may be expressed by Tenant, or that may otherwise be implied by law, and regardless of the manner of affixation, the Personal Property is not and shall not be deemed a fixture or part of the real estate, but shall at all times be considered Personal Property.

4. At such time as Tenant vacates the Leased Premises, voluntarily or involuntarily, the Lease is terminated, or Lender repossesses the Personal Property, Lender may store the Personal Property on the Leased Premises, operate the solar power generation facility located on the Leased Premises, and/or prepare the Personal Property for sale and/or conduct a sale or liquidation of such Personal Property on the Leased Premises. Lender shall not be liable for rental storage charges under the Lease or otherwise. However, if Landlord has made written demand on Lender to remove the Personal Property within a reasonable period of time, but not less than ninety (90) days after Lender's receipt of such written notice, and Lender has failed to do so, Lender may continue to store the Personal Property on the Leased Premises, operate the solar power generation facility located on the Leased Premises and otherwise use the Leased Premises as set forth above; provided, that Lender agrees to pay the regular monthly, non-accelerated rental payments due under the Lease (not including any past-due, additional or bonus rental) prorated for the number of days Lender keeps the Personal Property on the Leased Premises after expiration of such ninety (90) day notice period. Nothing herein or elsewhere shall be deemed to prevent or limit Lender, at its option, from abandoning any part of the Personal Property.
5. Landlord has not received notification of any other entity (other than Lender) claiming a security interest in the Personal Property.
6. All capitalized terms not defined herein shall have the meaning set forth in the Lease.
7. Landlord represents, warrants and certifies to Lender that Landlord is the fee owner of the Leased Premises, and (1) a true and correct copy of the Lease, including all amendments, modifications, supplements and waivers with respect thereto as of the date hereof, is attached hereto as Exhibit A; (2) the Lease is in full force and effect; (3) the Lease represents the entire agreement between Landlord and Tenant regarding the subject matter thereof and the Leased Premises; (4) Landlord has not transferred, assigned or hypothecated any of its rights or interests under the Lease to any other person or entity; (5) all amounts due under the Lease from Tenant to Landlord as of the date hereof have been paid; (6) there are no leases, including no oil and gas lease, timber deeds, crop leases or any other agreements with respect to the Leased Premises, in effect to which the Landlord's use of the Leased Premises are subject or subordinate; and (7) the Rent Commencement Date is _____ and the Expiration Date is _____.
8. Landlord has not given Tenant written notice of any dispute between Landlord and Tenant. Landlord does not consider Tenant to be in default under the Lease.
9. Landlord confirms all of Landlord's representations and warranties contained in the Lease are true and correct in all material respects as of the date made.
10. No default has occurred and is continuing under the Lease nor to the best of Landlord's knowledge has any event or condition occurred that, with the giving of notice or the passage of time, would constitute a default under the Lease or would otherwise permit either party to terminate or suspend its obligations under the Lease.

11. Landlord is not the subject of any bankruptcy, insolvency or similar proceeding in any federal, state or other court or jurisdiction.
12. Landlord does not claim any owed rent, fees, reimbursements or other payments payable under the Lease. Except as outlined in this section, there are no provisions for, and Landlord has no rights with respect to, terminating the Lease or increasing the fees payable thereunder, except as provided in the Lease.
13. All obligations of Tenant under the Lease have been completed as of the date hereof.
14. Tenant has not paid a security, letter of credit or other deposit with respect to the Lease.
15. Landlord is in compliance with all Hazardous Substances requirements which are binding upon Landlord under the terms of the Lease.
16. The person(s) executing this Landlord Estoppel Certificate and Agreement on behalf of the Landlord are duly authorized to do so.
17. No party has any option or preferential right to purchase all or any part of the Leased Premises.
18. Landlord has not received written notice of any pending eminent domain proceedings or other governmental actions or any judicial actions of any kind against the Leased Premises.
19. Landlord has not received written notice that it is in violation of any governmental law or regulation applicable to its interest in the Leased Premises and its operation thereon, including, without limitation, any environmental laws and has no reason to believe that there are grounds for any claim of any such violation.
20. Landlord has no unsatisfied claims against Tenant for indemnity with respect to Tenant's actions on or about the Leased Premises.
21. The Landlord acknowledges that the Tenant has granted to Lender a Leasehold Mortgage, Assignment of Leases and Rents, and Security Agreement (the "**Leasehold Mortgage**") as security for the obligations under that certain Loan Agreement by and between Lender and Tenant, dated as of or about the date hereof (the "**Loan Agreement**"), by virtue of which, Lender is a Financing Entity as defined in the Lease and therefore entitled to the protections granted to a Financing Entity pursuant to Sections 19 and 21 of the Lease. Other than the Leasehold Mortgage, Landlord has not received notice of any current assignment, hypothecation, mortgage or pledge by the current Tenant of Tenant's interest in the Lease or the rents or other amounts payable thereunder, except as follows (if none, so state): none. The Landlord hereby consents to such Leasehold Mortgage and confirms that such Leasehold Mortgage is permissible under the Lease. To the extent that notice of this Leasehold Mortgage is required pursuant the Lease, the Landlord acknowledges that this Landlord Estoppel Certificate and Agreement constitutes such notice.

22. Landlord shall give to Lender, as holder of the Leasehold Mortgage a written notice of any default by Tenant under the Lease, either (i) as provided in the Lease for a notice of default to Tenant, or (ii) in any event, not less than thirty (30) days prior to any termination of the Lease for failure to pay the rent and not less than sixty (60) days prior to any termination of the Lease for failure to perform other obligations thereunder, provided, that the Lender has no obligation to cure any such default. If a non-monetary default cannot reasonably be cured within such sixty (60) day period, Lender shall be given a reasonable additional period of time, not to exceed 120 days to cure such default so long as Lender is diligently proceeding to effect such cure. No event of default in respect of the performance or work required to be performed, or of acts to be done, or of conditions to be remedied under the Leases or as provided in in this Section shall be grounds for termination as against Lender as the holder of a Leasehold Mortgage if steps shall, in good faith, have been commenced within the time permitted therefor to rectify the same and shall be prosecuted to completion with diligence and continuity. No notice of termination shall be deemed to have been duly carried out unless and until such notice is given in accordance with the terms of this Landlord Estoppel Certificate and Agreement. Landlord's failure to deliver such notice shall not result in any liability of Landlord to the Lender or the Tenant, but Landlord may not accelerate the sums due under the Lease or terminate the Lease without first having delivered such notice and afforded the Lender an opportunity to cure the default. Such notices shall be made in accordance with Section 29 below. In addition, Lender shall be entitled to exercise any and all renewal options under the Lease in the same manner that Tenant is entitled to do so in accordance with the terms and conditions of the Lease. The Landlord agrees that it shall look solely to the Tenant for the prompt payment and performance of any covenants and provisions of the Lease (including without limitation all rent payable under the Lease) to be paid or performed by the Tenant (so long as Lender is not in possession of the Leased Premises), and that the Landlord shall accept performance from the Lender to the extent the Lender chooses to render performance of the Lease under the terms of this Landlord Estoppel Certificate and Agreement.
23. Anything contained in the Lease to the contrary notwithstanding, upon the occurrence of an event of default other than an event of default due to a default in the payment of rent, which is not cured within any applicable grace or cure period, Landlord shall take no action to effect a termination of the Lease without first giving to Lender as holder of the Leasehold Mortgage written notice thereof as provided in Section 22 of this Landlord Estoppel Certificate and Agreement and a reasonable time thereafter within which to either (i) obtain possession of the Leased Premises (including possession by a receiver), or (ii) institute, prosecute and complete foreclosure proceedings or otherwise acquire Tenant's interest under the Lease with diligence. Lender as holder, or an assignee of holder, upon obtaining possession or acquiring Tenant's interest under the Lease, shall be required promptly to cure all defaults then reasonably susceptible of being cured by such holder. Provided however, that: (i) such holder shall not be obligated to continue such possession or to continue such foreclosure proceedings after such defaults shall have been cured; (ii) nothing herein contained shall preclude Landlord, subject to the provisions of this Landlord Estoppel Certificate and Agreement, from exercising any rights or remedies under the Lease with respect to any other default by Tenant during the pendency of such foreclosure proceedings; and (iii) such holder shall agree with Landlord in writing to comply during

the period of such forbearance with such of the terms, conditions and covenants of the Lease as are reasonably susceptible of being complied with by such holder. Any default by Tenant not reasonably susceptible of being cured by such holder on account of insolvency or voluntary and involuntary bankruptcy or reorganization proceedings, receivership, or an assignment for the benefit of creditors or the like shall be deemed to have been waived by Landlord upon completion of such foreclosure proceedings or upon such acquisition of Tenant's interest in the Lease, except that any of such events of default which are reasonably susceptible of being cured after such completion and acquisition shall then be cured with reasonable diligence. Such holder, or its designee, or other purchaser in foreclosure proceedings may become the legal owner and holder of the Lease through such foreclosure proceedings or by an outright assignment of the Lease in lieu of foreclosure.

24. In the event of the termination of the Lease prior to the expiration of the term thereof, Landlord shall serve upon Lender as the holder of such Leasehold Mortgage written notice that the Lease has been terminated together with a statement of any and all sums which would at that time be due under the Lease but for such termination, and of all other defaults, if any, under the Lease then known to Landlord. Such holder, or its designee, shall thereupon have the option to obtain a new lease in accordance with and upon the following terms and conditions: Such new lease shall be entered into at the reasonable cost to the tenant thereunder, shall be effective as of the date of the termination of the Lease, and shall be for the remainder of the term of the Lease and at the rent and upon all the agreements, terms, covenants and conditions thereof, including any applicable rights of renewal. Such new lease shall require the tenant thereunder to perform any unfulfilled obligation of Tenant under the Lease which is reasonably susceptible of being performed by such tenant.
25. No agreement between Landlord and Tenant, nor any election by Tenant under the terms of the Lease, reducing the terms of the Lease or canceling or surrendering the Lease shall be effective without the prior written consent of Lender as the holder of the Leasehold Mortgage.
26. Lender as holder of a Leasehold Mortgage may assign the Lease, subject to the written consent of Landlord, which shall not be unreasonably withheld or delayed, and shall thereupon be released from all liability for performance or observance of covenants and conditions in the Lease contained on Tenant's part to be performed and observed from and after the date of such assignment, provided such assignee assumes in writing all of the obligations of Tenant under the Lease.
27. The Landlord agrees that any action taken by the Lender to exercise its remedies under the Loan Agreement and the other loan documents shall not constitute a default or event of default under the Lease, and the Lease shall continue in full force and effect following the exercise of such remedies. Any assignment of the membership interests in the Tenant shall constitute a permitted assignment under the Lease and the Lease shall continue in full force and effect following such assignment, without the requirement of any further documentation regarding such assignment between the Landlord and the Tenant. The Landlord agrees that any lien or encumbrance arising from any act or omission of the Landlord shall accrue only against the fee simple estate owned by the Landlord and not

against any improvement erected by the Tenant and shall, in all cases, be subject and expressly subordinate to the Lease.

28. This Landlord Estoppel Certificate and Agreement shall be governed by, and construed under, the laws of the Commonwealth of Massachusetts without regard to conflicts of law principles. This Landlord Estoppel Certificate and Agreement shall have the effect of estopping the undersigned from making any assertions contrary to the contents hereof; and shall serve as a waiver of any claim by the undersigned to the extent that such claim is asserted against any person permitted to rely upon, and who has acted in reliance upon this Landlord Estoppel Certificate and Agreement. Landlord (and any person claiming by, through or under Landlord and any heir, executor, administrator, successor to or assign of Landlord) is not (and shall under no circumstances be deemed to be) a party to or third-party beneficiary of the arrangements between Lender and Tenant evidenced hereby or entitled to enforce or rely upon such arrangements.
29. Any notice that may be given by Landlord hereunder shall be in writing and made to Lender, by hand delivery, overnight delivery via nationally recognized overnight delivery service, or registered or certified United States mail with return receipt and shall be deemed to have been given or made when delivered, or, if sent via United States mail, when receipt signed by the receiver, postage prepaid, addressed to the party at its address specified below (or at any other address that the party may hereafter specify to the other parties in writing):

Crestmark, a Division of MetaBank, National Association
5480 Corporate Drive, Suite 350
Troy, Michigan 48098
Attn: Christopher Soupal, SVP

Any notice that may be given by Lender hereunder shall be in writing and made to Landlord, by hand delivery, overnight delivery via nationally recognized overnight delivery service, or registered or certified United States mail with return receipt and shall be deemed to have been given or made when delivered, or, if sent via United States mail, when receipt signed by the receiver, postage prepaid, addressed to the party at its address specified below (or at any other address that the party may hereafter specify to the other parties in writing):

This Landlord Estoppel Certificate and Agreement may be signed in any number of counterpart copies and by the parties hereto on separate counterparts, but all such copies shall constitute one and the same instrument. Delivery of an executed counterpart of a signature page to this Landlord Estoppel Certificate and Agreement by facsimile transmission or electronically in “.pdf” format shall be effective as delivery of a manually executed counterpart. Any party so executing this Landlord Estoppel Certificate and Agreement by facsimile transmission or electronically in “.pdf” format shall promptly deliver a manually executed counterpart; provided that any failure to do so shall not affect the validity of the counterpart executed by facsimile transmission.

Landlord acknowledges that Tenant, Holdco, Investor and their successors and assigns, and their potential lenders and their member, managers and other participants, and their respective successors and assigns, shall be entitled to rely upon this certification by Landlord.

LANDLORD:

Sun-REA, LLC

By: Renewable Energy Alternatives, LLC, its
Manager

By: _____
Name: Natalie D. Riley, Manager

Date: _____, 2020

Acknowledged and agreed to by:

TENANT:

[Signature page to Landlord Estoppel Certificate]

EXHIBIT A

The Lease

<See attached>

EXHIBIT F

FORM OF EASEMENT

UPON RECORDING RETURN TO:

REBECCA KWOKA, ESQ.
P.O. BOX 1320
PORTSMOUTH, NH 03802

ACCESS, UTILITY AND DRAINAGE EASEMENT AGREEMENT

This ACCESS, UTILITY AND DRAINAGE EASEMENT (the “**Easement Agreement**”) is made and executed as of this ____ day of _____, 2019, by and between [____], LLC, a Delaware limited liability company, having a business address of P.O. Box 1320, Portsmouth, NH 03802 (“**Grantee**”) and [____], with an address of [____] (“**Grantor**”).

WHEREAS, Grantor is the owner of record of certain real property located at [____], Maine by deed dated [____] and recorded with the • County Registry of Deeds at Book [____], Page [____], more particularly described on Exhibit A attached hereto (the “**Landlord Property**”);

WHEREAS, Grantee has entered into a Land Lease Agreement for Solar Project with the Grantor dated _____, 2018, as amended, (the “**Lease**”) to lease a portion of the Landlord Property, more particularly described on Exhibit B attached hereto (the “**Leased Property**”);

WHEREAS Grantee desires to access the Leased Property via an access road, and place certain utility related equipment on said road (the “**Access and Utility Easement Area**”), more particularly described on Exhibit C, attached hereto; and

WHEREAS Grantee desires to utilize certain land adjacent to the Leased Property located on the Landlord Property for access to and use of drainage improvements (the “**Access and Drainage Easement Area**”), more particularly described on Exhibit D, attached hereto; and

WHEREAS, Grantor desires to grant Grantee an access, utility and drainage easement over the Landlord’s Property for such above-referenced purposes, as described herein and collectively depicted on Exhibit E and Exhibit F, subject to the conditions described herein;

NOW, THEREFORE, for good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties hereto agree as follows:

1. Grant of Access and Utility Easement.
 - a. Access Easement. Grantor hereby grants to Grantee a non-exclusive easement of limited duration to enter, re-enter and use any portion of the Access and Utility Easement Area specified in Exhibit C located on the Landlord’s Property, to exercise the rights of unobstructed ingress and egress to the Leased Property in connection with the construction, operation and maintenance of Grantee’s solar power generation facilities to be located thereon (the “**Project**”).

- b. Utility Easement. Grantor hereby grants to Grantee a non-exclusive easement of limited duration to use any portion of the Access and Utility Easement Area specified in Exhibit C located on the Landlord's Property, to install, construct, reconstruct, alter, extend, operate, inspect, maintain, repair, replace and remove (a) utility poles and associated overhead wires, cables, insulators, fittings and fixtures, and all necessary cross-arms, guys, braces, foundations, anchors, and other supporting appurtenances deemed necessary by Grantee for the purposes specified above; (b) pedestals, concrete pads, transformers, switchgear and apparatus cabinets with the necessary wires, cables, terminals, fixtures and appurtenances deemed necessary by Grantee for the purposes specified above, and (c) together with the right and easement to enter upon the Leased Premises, including vehicular access for construction and maintenance purposes, as may be necessary from time to time for all of the foregoing purposes, utilizing existing paved ways and parking areas on the Leased Premises to the extent practicable.
2. Grant of Access and Drainage Easement. Grantor hereby grants to Grantee a non-exclusive easement to use any portion of the Access and Drainage Easement Area specified in Exhibit D located on, over, across and under the Landlord's Property, for storm water drainage and to use, construct, reconstruct, operate, inspect, maintain, repair and replace the drainage improvements (the "**Drainage Improvements**") in connection with the construction, operation and maintenance of Grantee's Project.
3. Term. The easement granted hereby and all other rights and privileges granted under this Easement Agreement shall commence on the date of this Easement Agreement and shall terminate upon the later of the (a) termination of the Lease in accordance with its terms, or (b) upon completion of the decommissioning of the Project.
4. Maintenance. The easement granted to Grantee by the terms and conditions of this Easement Agreement shall be appurtenant to the Leased Property and Grantor shall be responsible for normal maintenance of the Access and Utility Easement Area including snowplowing. Grantee reserves the right to perform maintenance of the Access and Utility Easement Area as necessary at Grantee's expense. Grantee shall be responsible for all costs of upgrades made by Grantee to the Access and Utility Easement Area.
5. Covenants Running with the Land/Assignment. The parties to this Easement Agreement acknowledge and agree that the easement and other rights conferred by this Easement Agreement are intended to, and do, constitute (i) easements appurtenant to the Leased Property, (ii) covenants that run with the land, and (iii) shall inure to the benefit of and be binding upon the parties and their respective grantees, heirs, successors and assigns. Without limiting the foregoing, Grantor acknowledges that Grantee's rights under this Easement Agreement are assignable; that Grantee may enter into agreements to sell or otherwise may transfer its leasehold interests in the Leased Property or an interest therein, either to affiliates of Grantee or to third Parties, and that Grantor hereby consents to Grantee's assignment of all of its right, title and interest and its delegation of all of its

obligations created under this Easement Agreement upon any such the sale or transfer and, upon any such assignment, Grantee shall be forever released and discharged from any and all claims, demands and damages which Grantor may have, make or suffer as a result of anything done or occurring after the date of such assignment. Nothing contained in this Section 5, however, shall in any way be construed as releasing Grantee's successors and assigns from any obligations to Grantor created by this Easement Agreement or to in any way limit Grantor's remedies at law or in equity as against such successors and assigns.

6. Utility Easement. Grantor agrees to execute any further easement agreement(s) required by a public or private utility for interconnection of the utility lines for the Project in the form required by such utility, if applicable.
7. Indemnity. Each party shall indemnify, defend and hold harmless the other party and its officers, directors, shareholders, members, managers, employees, agents, successors, and assigns from and against any and all losses incurred by or on behalf of any of the foregoing indemnified parties in connection with or arising from any claim by a third party for physical damage to or physical destruction of property, or death of or bodily injury to any person, but only to the extent caused by the negligence or willful misconduct of (i) the indemnifying party, (ii) the indemnifying party's employees acting within the scope of their employment, and (iii) any other person for whom or which the indemnifying party is legally liable. Notwithstanding the foregoing, no indemnity provided under this Section by a party shall extend to losses to the extent attributable to the negligence or willful misconduct of an indemnified party. The covenants of this Section shall survive and be enforceable and shall continue in full force and effect for the benefit of the Parties and their subsequent transferees, successors, and assigns and shall survive the Term of this Easement Agreement.
8. Further Assurances. Grantor agrees to execute, acknowledge and deliver, as appropriate, any and all such additional instruments, necessary under this Easement Agreement and other documents and to perform such other acts as may be necessary or convenient to consummate construction, operation, and maintenance of the Project in accordance with the terms hereof.
9. Governing Law. This Easement Agreement shall be governed by the laws of the State of Maine, without giving effect to its principles of conflicts of law.
10. Modification. This Easement Agreement may be modified only upon written agreement by the Parties.
11. Integration. The foregoing constitutes the entire agreement between the parties regarding its subject matter and no additional or different oral representation, promise or other agreement shall be binding on any of the parties hereto with respect to the subject matter stated in this Easement Agreement.
12. No Third-Party Beneficiaries. Except as may be expressly provided herein, there are no intended third-party beneficiaries to this Easement Agreement.
13. Severability. If any provision or provisions of this Easement Agreement shall be held invalid, illegal, or unenforceable, then the validity, legality, and enforceability of the remaining provisions shall in no way be affected or impaired thereby and the parties shall negotiate in good faith to restore insofar as practicable the benefits to each party that were affected by such ruling.

14. Assignment. No Party shall assign or transfer this Easement Agreement, or any interest herein, without the prior written consent of the other Party which shall not be unreasonably withheld, delayed or conditioned. Notwithstanding the foregoing, Grantee is expressly permitted to assign its rights and responsibilities under this Easement Agreement, without obtaining Grantor's consent and in its sole discretion, to any person or any business entity at any time, subject to the assignee assuming all of Grantee's obligations under the Lease.

IN WITNESS WHEREOF, the parties hereto have executed this Easement Agreement as of the day and year first above written.

GRANTOR:

[_____]

By: _____

STATE OF MAINE)
)
COUNTY OF _____)

On this ____ day of _____, 2019, before me, the undersigned notary public, personally appeared _____, proved to me through satisfactory evidence of identity, being _____, and acknowledged to me that he signed the foregoing Access, Utility and Drainage Easement voluntarily and for its stated purpose in the aforesaid capacity.

Notary Public
My Commission Expires:_____

GRANTEE:

[_____] , LLC

By: _____

Name: Robert Lambert

Title: Senior Vice President

STATE OF MAINE)

)

COUNTY OF _____)

On this ____ day of _____, 2019, before me, the undersigned notary public, personally appeared Robert Lambert, as Senior Vice President of [_____] , LLC, a Delaware limited liability company, proved to me through satisfactory evidence of identity, being _____, and acknowledged to me that he signed the foregoing Access, Utility and Drainage Easement voluntarily and for its stated purpose in the aforesaid capacity on behalf of [_____] , LLC.

Notary Public

My Commission Expires:_____

EXHIBIT A

Landlord's Property Legal Description

EXHIBIT B

Leased Premises Legal Description

EXHIBIT C

Access and Utility Easement Area Legal Description

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EXHIBIT D

Access and Drainage Easement Area Legal Description

EXHIBIT E

Plan Depicting the Access and Utility Easement Area

EXHIBIT F

Plan Depicting the Access and Drainage Easement Area

EXHIBIT G

FORM OF ESTOPPEL

LANDLORD ESTOPPEL CERTIFICATE

[_____]
[_____]
[_____]

Re: Land Lease Agreement for Solar Project dated [_____] (the “Lease”) by and between [_____] (“Landlord”) and SunRaise Development, LLC, a Delaware limited liability company, as assigned to [_____] (collectively, the “Tenant”) for the premises, which is part of that certain parcel of real property owned by Landlord having Tax Parcel ID No. [_____] , located in the County of [_____] , State of Maine and more particularly described in the Lease (the “Leased Premises”)

Ladies and Gentlemen:

The undersigned Landlord does hereby certify to Tenant and Investor, and their successors and assigns, their potential lenders and their member, managers and other participants, and their respective successors and assigns, as follows:

1. All capitalized terms not defined herein shall have the meaning set forth in the Lease.
2. Landlord represents, warrants and certifies to Lender that Landlord is the fee owner of the Leased Premises, and (1) a true and correct copy of the Lease, including all amendments, modifications, supplements and waivers with respect thereto as of the date hereof, is attached hereto as Exhibit A; (2) the Lease is in full force and effect; (3) the Lease represents the entire agreement between Landlord and Tenant regarding the subject matter thereof and the Leased Premises; (4) Landlord has not transferred, assigned or hypothecated any of its rights or interests under the Lease to any other person or entity; (5) all amounts due under the Lease from Tenant to Landlord as of the date hereof have been paid; and (6) there are no leases, including no oil and gas lease, timber deeds, crop leases or any other agreements with respect to the Leased Premises, in effect to which the Landlord’s use of the Leased Premises are subject or subordinate.
3. Landlord has not given Tenant written notice of any dispute between Landlord and Tenant. Landlord does not consider Tenant to be in default under the Lease.
4. Landlord confirms all of Landlord’s representations and warranties contained in the Lease are true and correct in all material respects as of the date made.
5. No default has occurred and is continuing under the Lease nor to the best of Landlord’s knowledge has any event or condition occurred that, with the giving of notice or the passage

of time, would constitute a default under the Lease or would otherwise permit either party to terminate or suspend its obligations under the Lease.

6. Landlord is not the subject of any bankruptcy, insolvency or similar proceeding in any federal, state or other court or jurisdiction.
7. Landlord does not claim any owed rent, fees, reimbursements or other payments payable under the Lease. Except as outlined in this section, there are no provisions for, and Landlord has no rights with respect to, terminating the Lease or increasing the fees payable thereunder, except as provided in the Lease.
8. All obligations of Tenant under the Lease have been completed as of the date hereof.
9. Tenant has not paid a security, letter of credit or other deposit with respect to the Lease.
10. Landlord is in compliance with all Hazardous Substances requirements which are binding upon Landlord under the terms of the Lease.
11. The person(s) executing this Landlord Estoppel Certificate on behalf of the Landlord are duly authorized to do so.
12. No party has any option or preferential right to purchase all or any part of the Leased Premises.
13. Landlord has not received written notice of any pending eminent domain proceedings or other governmental actions or any judicial actions of any kind against Landlord's interest in the Leased Premises.
14. Landlord has not received written notice that it is in violation of any governmental law or regulation applicable to its interest in the Leased Premises and its operation thereon, including, without limitation, any environmental laws and has no reason to believe that there are grounds for any claim of any such violation.
15. Landlord has no unsatisfied claims against Tenant for indemnity with respect to Tenant's actions on or about the Leased Premises.
16. This Landlord Estoppel Certificate shall be governed by, and construed under, the laws of the State of Maine without regard to conflicts of law principles.
17. This Landlord Estoppel Certificate shall have the effect of estopping the undersigned from making any assertions contrary to the contents hereof; and shall serve as a waiver of any claim by the undersigned to the extent that such claim is asserted against any person permitted to rely upon, and who has acted in reliance upon this Landlord Estoppel Certificate.

Landlord acknowledges that Tenant, [], Investor and their successors and assigns, and their potential lenders and their member, managers and other participants, and their respective successors and assigns, shall be entitled to rely upon this certification by Landlord.

LANDLORD:

[_____]

By: _____

Name:

Title:

Date: _____, 20__

EXHIBIT A

The Lease

<See attached>